

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



March 14, 2018

The Honorable Judge Rene Navarro
Judge of the Superior Court
County of Santa Clara
191 N. 1ST Street
San Jose, CA 95113

Dear Judge Navarro:

"The purpose of this letter is to recommend a recall of sentence and resentence for Jon T. Grobman, pursuant to Penal Code (PC) Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence."

Based on a review of his central file, and the PC Section 1170(d)(1) packet material, it is my recommendation Mr. Grobman's request for consideration of Recall of Commitment is approved. He is a 51-year old multi-term offender received from Santa Clara County on October 10, 2007, Case number CC58846 ~~pursuant to a conviction on several counts and sentenced to 150 years to life~~ consecutive to 40 years. He has a minimum parole date of December 23, 2134.

Mr. Grobman is serving a term of 190 years to life for four counts of first degree burglary, possession of a controlled substance, possession of stolen property, and enhancements. His criminal history includes numerous convictions related to theft, and two prior prison terms for grand theft and first degree burglary. After careful evaluation of this case, it is my recommendation the current prison commitment and sentence of Mr. Grobman be considered for recall pursuant to Penal Code 1170, subdivision (d)(1).

Mr. Grobman has not been disciplined for any serious misconduct in prison and has no documented gang affiliation. He co-founded the Progressive Art Program at his prison and is a lead trainer and Team Leader for the Paws for Life Program, where he helps train service dogs for the care of veterans. He has worked to raise tens of thousands of dollars for charities benefiting homeless youth, battered women, veterans, and other worthy causes. He is housed in the Progressive Programing Facility at his prison and has participated in numerous self-help courses, including Victim Sensitivity Awareness, Alternatives to Violence, and Paving the Way.

The Santa Clara District Attorney's Office has requested that I refer this case back to the court for re-sentencing pursuant to Penal Code § 1170(d)(1), noting in their letter that "by all accounts, Mr. Grobman is a changed man." Additionally, the District Attorney's Office has been in contact with three of Mr. Grobman's victims and according to a Deputy District Attorney in their Office, "To a person, they [the victims] want to see Mr. Grobman released. None believe that the punishment fits the crime." In short, Mr. Grobman has been an exemplary inmate in prison. He is deserving of sentence reconsideration.

If you have any questions or require further information, please contact Brian Moak, Chief, Classification Services Unit at (916) 322-2544.

Sincerely,


SCOTT KERNAN
Secretary

Enclosure

cc: ~~The Honorable Patricia M. Lucas, Santa Clara Presiding Judge~~

~~Rebecca Fleming, Santa Clara Court Executive Officer~~

~~Martin Hoshino, Administrative Director, Judicial Council of California~~

~~David Angel, Assistant District Attorney, Santa Clara County District Attorney's Office~~

~~Brian Moak, Chief, Classification Services Unit~~